

EVICTIION PROCESS — NM

For: John Doe

Understanding the process reduces fear and helps you prepare. This is a general timeline — your specific dates are on your summons.

1. Notice *(3-30 days)*

Landlord serves notice (3 days for nonpayment, 7 for lease violation, 30 for month-to-month).

2. Petition for Restitution *(After notice)*

Landlord files in Metropolitan or Magistrate Court. You receive summons.

3. File Answer *(3-10 days)*

YOU ARE HERE. File your answer. Timeline depends on court.

4. Trial *(Within 7-14 days)*

Judge hears both sides. Mediation may be offered.

5. Judgment *(Day of trial)*

If you lose, judgment for restitution. You have 3 working days to appeal.

6. Writ of Restitution *(3+ days after judgment)*

Sheriff posts 24-hour notice and executes eviction.

IMPORTANT: This timeline is a general guide. Your specific deadlines and procedures depend on your state, county, and case type. Read your summons carefully. If you do not understand something, ask the court clerk or a legal aid attorney.

IMPORTANT: This document is provided for informational purposes only. It is not legal advice. If you need legal advice, contact a licensed attorney.
You are responsible for your own case and what you say in court.